

24STCV30040 24STCV30040

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 24STCV30040 Hearing Date: September 9, 2026 Dept: 510

No.

9 – Zainab Raheen, et al. v. Unique Homes by Caspian, Inc., et al.

Defendant

Unique Homes by Caspian, Inc.'s Motions for Orders Compelling Responses to Form Interrogatories, Special Interrogatories, and Requests for Production

Defendant

Unique Homes by Caspian, Inc. moves for orders compelling Plaintiff Zainab Raheen to provide initial responses to form interrogatories, special interrogatories, and requests for production.

A

party must respond to written discovery "[w]ithin 30 days after service." (Code Civ. Proc., §§ 2030.260(a) [interrogatories], 2031.260(a) [requests for production].) When the responding party fails to serve a timely response to interrogatories or requests for production, the requesting party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.290(b) [interrogatories], 2031.300(b) [requests for production].) Failing to serve a timely response results in waiving any objections. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a).)

Plaintiff failed to serve timely responses to

Defendant's discovery requests. Defendant served form interrogatories, special interrogatories, and requests for production on Plaintiff on October 30, 2025.

(Medina Decls., ¶ 3.) As of the date these motions were filed, Plaintiff had

still not responded. (Id., ¶ 4; Motions, at p. 3.) There is no

indication that Plaintiff served responses between the date the motions were

filed and the date of the hearing. Defendant is therefore entitled to an order compelling Plaintiff to respond to written discovery.

Sanctions

Defendant

requests \$9,000 in fees and \$180 in costs as monetary sanctions against Plaintiff. Failing to respond to an authorized method of discovery is a misuse of the discovery process subject to monetary sanctions. (Code Civ. Proc., § 2023.010(d).) Plaintiff failed to provide any responses by the deadline. There is no evidence that Plaintiff acted with substantial justification. Plaintiff did not file an opposition.

The

Court finds sanctions are appropriate. Defendant did not, however, reasonably incur \$9,000 in expenses in preparing these three motions. (Medina Decls., ¶¶ 6-7.) These motions are almost identical to each other. In addition, the Court notes that two conflicting hourly rates are presented: one at \$250 per hour and another at \$375 per hour. (Ibid.) The Court exercises its discretion to award counsel fees incurred drafting one of the motions at a rate of \$250 per hour for four hours. This totals \$1,000. The Court will award counsel one hour for attending the hearing on this motion for an additional \$250. The Court will award \$180 in filing costs to compensate for the \$60 filing fee required for each motion. The Court will not award fees for hours requested for reviewing an anticipated opposition brief and preparing a reply; no opposition brief was filed and no reply was needed.

Thus,

Defendant reasonably incurred a total of \$1,250 in attorney fees and \$180 in filing fees.

Disposition

Defendant

Unique Homes by Caspian, Inc.'s motions to compel responses to form interrogatories, special interrogatories, and requests for production are granted. Plaintiff Zainab Raheen is ordered to serve verified responses without objections within 10 days.

Plaintiff

Zainab Raheen and her counsel of record are ordered jointly and severally to pay Defendant Unique Homes by Caspian, Inc. \$1,430 in sanctions within 21 days.